

24STCV01839 24STCV01839

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Case Number: 24STCV01839 Hearing Date: July 10, 2026 Dept: 514

Chandler v. County of Los Angeles

24STCV01839

Defendant's Motion to Compel Mental Examination of Plaintiff

Defendant's Motion for Summary Judgment or, in the Alternative, for Summary
Adjudication

Tentative Ruling

The Court will call this matter.

The Court was previously advised that the parties were close to an agreement regarding the proposed mental examination of Plaintiff. The Court will inquire regarding the status.

The Court's tentative ruling is that the hearing on Defendant's motion for summary judgment is continued as a result of a significant procedural issue with the opposition papers.

Background

This case arises out of an employment relationship.

On January 24, 2024, Jessica Chandler ("Plaintiff") filed the complaint in this action.

On April 16, 2024, Plaintiff filed the First Amended Complaint (the "FAC") against County of Los Angeles ("Defendant") and Does 1 through 20, asserting ten causes of action: (1) Discrimination, Harassment and Retaliation in Violation of the Family Rights Act, (2) Discrimination in Violation of the Fair Employment and Housing Act (the "FEHA"), (3) Retaliation in Violation of the FEHA, (4) Harassment in Violation of the FEHA, (5) Failure to Prevent Discrimination, Harassment and Retaliation in Violation of the FEHA, (6) Failure to Provide Reasonable Accommodation in Violation of the FEHA, (7) Failure to Engage in Interactive Process in Violation of the FEHA, (8) Failure to Provide Lactation Accommodation in Violation of Labor Code Sections 1030-1031, (9) Intentional Infliction of Emotional Distress, and (10) Constructive Discharge.

On May 16, 2024, Defendant filed an answer.

Two motions are before the Court and set for hearing on July 10, 2026.

First, on April 16, 2026, Defendant filed a motion for summary judgment or, in the alternative, for summary adjudication. Plaintiff filed an opposition on June 18, and Defendant filed a reply on June 29.

Second, on June 11, 2026, Defendant filed a motion for an order compelling a mental examination of Plaintiff. No opposition or reply was filed. The motion came on for hearing on July 7. At the hearing, the parties advised the Court that they were close to an agreement to resolve this motion; the Court continued the hearing to July 10.

Trial is set for August 10, 2026. At the hearing on July 7, the parties discussed with the Court the likelihood that they would be requesting a continuance of the trial date.

Legal Standard

"The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties'

pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c), “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

As to each cause of action as framed by the complaint, a defendant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show “that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2); see also Aguilar, supra, 25 Cal.4th at pp. 850-851; Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2); see also Aguilar, supra, 25 Cal.4th at pp. 850-851.)

A plaintiff or cross-complainant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show “that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) Once the plaintiff or cross-complainant has met that burden, the burden shift to the defendant or cross-defendant to show that a “triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

The party opposing a motion for summary judgment or summary adjudication may not simply “rely upon the allegations or denials of its pleadings” but must instead “set forth the specific facts

showing that a triable issue of material fact exists.” (Code Civ. Proc., § 437c, subds. (p)(1) & (p)(2). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Courts

“liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Discussion

Motion for Mental Examination

The Court will call this
matter and inquire regarding the status.

Motion for Summary Judgment/Summary Adjudication

The Court will call this
matter.

The Court notes that there is
a serious procedural issue with the opposition papers: Plaintiff has not filed a responsive separate statement. This is
required. (Code Civ. Proc., § 437c,
subd. (b)(3).)

The requirement that the
non-moving party file a responsive separate statement is not some abstract requirement
or a procedural trap designed to snare an unwary litigant. To the contrary, the responsive separate
statement is a critical document for the Court to receive in making a ruling on
a motion for summary judgment. Indeed,
in many cases, it is the most important document, as this provides the Court
with a direct and clear guide regarding what facts are undisputed and what
facts are disputed (according to the non-moving party). As the Court of Appeal has recently observed,
“The separate statement is an indispensable part of the summary judgment or
adjudication process because it plainly identifies factual issues and allows

the trial court to determine whether a trial is required to establish those facts and resolve the dispute.” (Champlin/GEI Wind Holdings, LLC v. Avery (2023) 92 Cal.App.5th 218, 226.)

When the non-moving party fails to file a responsive separate statement, the Court may, in its discretion, continue the hearing and allow Plaintiff the opportunity to provide the missing document, or the Court may simply grant the motion. (See Code Civ. Proc., § 437c, subd. (b)(3).) Nonetheless, the Court of Appeal has directed that “in most instances,” the “proper response ... is to give the opposing party an opportunity to file a proper separate statement rather than entering judgment against that party based on its procedural error.” (Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1211.)

The Court’s tentative ruling is that the Court exercises its discretion to continue the hearing to allow Plaintiff to file a proper separate statement.

The Court will call this matter to discuss scheduling.